

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, JUNE 16, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, June 16, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, June 15, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at 8:30 a.m. in **Department 42**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0095795 LVNV Funding v. Carter, Marc S

The demurrer to the complaint is dropped from calendar as no moving papers were filed with the court.

2. S-CV-0052591 Germany, Steven E v. Bains, Jazmin

Defendant's motion for summary judgment or, in the alternative, summary adjudication is continued to be heard on **June 23, 2026 at 8:30 a.m. in Department 42**. The court finds good cause to hear the motion within 30 days of trial. (Code Civ. Proc., § 437c, subd. (a)(3).) No further briefing is permitted.

3. **S-CV-0052987 Willms, Karey Rennee v. Juchau, Corey**

This tentative ruling is issued by **Commissioner Michael A. Jacques**. If oral argument is requested, it will be heard on **June 18, 2026, at 8:30 a.m. in Department 40** before Commissioner Michael A. Jacques.

Motion for Attorney's Fees

Respondents move for attorney's fees based on being the prevailing party in a civil harassment restraining order proceeding. Petitioner opposes the motion. Respondents filed untimely objections to petitioner's evidence in her opposition. The court did not consider any evidence related to arguing the merits of the underlying case, as that is not relevant for the purposes of this motion.

Background

In June 2024, petitioner filed two petitions for civil harassment restraining orders ("CHRO") under Code of Civil Procedure section 527.6: one against Corey Juchau (S-CV-0052987) and one against Lynele Juchau (S-CV-0053002). The cases were consolidated for trial before Commissioner Michael Jacques.

Trial testimony proceeded over three hearing days: September 16, October 15, and October 23, 2024.

On February 28, 2025, the court-ordered mediation did not proceed because neither party appeared, so the Court dropped the petition. The minute order marks the matter "Drop ... Failed to appear," reflects that both petitioner and respondents were "Not Present," and states "petition dismissed."

Analysis

"A person who has suffered harassment as defined in subdivision (b) may seek a temporary restraining order and an order after hearing prohibiting harassment as provided in this section." (Code Civ. Proc., § 527.6(a)(1).) "The prevailing party in an action brought pursuant to this section may be awarded court costs and attorney's fees, if any." (Code Civ. Proc., § 527.6(s).)

Respondents seek an award of attorneys' fees of \$38,683.00 incurred with regard to the CHRO Actions, plus additional attorneys' fees incurred with regard to filing this motion.

Timeliness of the motion

The California Rules of Court provide:

A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court – including

attorney's fees on an appeal before the rendition of judgment in the trial court – must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case or under rules 8.822 and 8.823 in a limited civil case.

(Cal. Rules of Court, Rule 3.1702(b)(1). The time limits set forth for requests of attorney's fees borrow the time limits for filing a notice of appeal. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 266.) Under Rule 8.104, an attorneys' fees motion must be filed "on or before the earliest of (A) 60 days after the superior court clerk serves on the party filing the notice of appeal a document entitled 'Notice of Entry' of judgment or a filed-endorsed copy of the judgment, showing the date either was served; (B) 60 days after the party filing the notice of appeal serves or is served by a party with a document entitled 'Notice of Entry' of judgment or a filed-endorsed copy of the judgment, accompanied by proof of service; or (C) 180 days after entry of judgment ... The entry date of an appealable order that is entered in the minutes is the date it is entered in the permanent minutes." (Cal. Rules of Court, rule 8.104 (c)(2).)

The petition here was dismissed by minute order on February 28, 2025, when neither party appeared. The order marks the matter "Drop . . . Failed to appear" and bears the notation "petition dismissed." (Thomas Decl. ¶ 8, Ex. C.) The order did not direct preparation of any further written order. No notice of entry was served, so the 180-day period expired on August 27, 2025.

Respondents did not file or serve their motion until January 29, 2026, 155 days late, failing the rule's "served and filed" requirement on both counts. (See Cal. Rules of Court, rule 3.1702 (b)(1).) (See *Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 429.) Respondents have not requested an extension for good cause under rule 3.1702(d).

Prevailing party

Respondents argue petitioners have obtained none of the relief they requested, and respondents are not subject to any court order with regard to petitioners' claims in the CHRO Action. Respondents argue that, "because section 527.6, "does not define 'prevailing party,' the 'general definition of "prevailing party" in [C.C.P.] section 1032 may be used.' *Elster v. Friedman* (1989) 211 Cal.App.3d 1439, 1443.) Section 1032(a)(4), provides that a 'prevailing party' includes 'a defendant in whose favor a dismissal is entered.'" In *Adler v. Vaicius* (1993) 21 Cal.App.4th 1770, a CHRO petitioner obtained a TRO against a respondent but later dismissed the case. The trial court determined respondent was the prevailing party and awarded him attorney's fees and costs, a decision upheld on appeal.

In *Elster* and *Adler*, the petitioner moved to dismiss the case. That was not the result here. In this case, neither party appeared for court-ordered mediation, and the petition was dropped and dismissed. Moreover, the court did not enter judgment in favor of the respondents on the order.

Under section 527.6, subdivision (s), “[t]he prevailing party in an action brought pursuant to this section *may* be awarded court costs and attorney’s fees, if any.” (Italics emphasis added.) By its terms, the subdivision gives trial courts discretion “to award attorney fees to a prevailing party—plaintiff or defendant.” (*Krug v. Maschmeier* (2009) 172 Cal.App.4th 796, 802). The “determination of the prevailing party lies in the court’s sound discretion” and that “determination must be upheld unless there is a manifest abuse of discretion.” (*Elster* (1989) 211 Cal.App.3d 1439, 1443.)

Therefore, the court finds, in its discretion, respondents do not meet the definition of the prevailing party.

Conclusion

Based on the foregoing, respondents’ motion for attorney’s fees is denied.

4. **S-CV-0053111 LeRoy, Joseph v. Pickett, Ryan A**

Defendants are advised the notice of motion for judgment on the pleadings must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendants Ryan A. Pickett and Traci I. Pickett’s Motion for Judgment on the Pleadings

Defendants Ryan A. and Traci I. Pickett (collectively “Picketts”) move for judgment on the pleadings as to the first, second, third, fourth, sixth and ninth causes of action asserted in the first amended complaint (“FAC”) filed by plaintiff Joseph A. Leroy, individually and as trustee of the Joseph A. Leroy Trust (“plaintiff”).

A motion for judgment on the pleadings tests the legal sufficiency of the complaint and is the equivalent to a general demurrer. (Code Civ. Proc. (“CCP”) § 438; *Blank v. Kirwan* (1985) 39 Cal.3d 311.) The court accepts as true all material facts properly pleaded, but not contentions, deductions, or conclusions of law. (*Ibid.*)

As to the first cause of action for breach of contract, the motion is denied. The court finds the FAC alleges sufficient facts to support this claim, in light of factual allegations supporting plaintiff’s fraud theories as discussed below. (*Shapiro v. Hu* (1986) 188 Cal.App.3d 324, 333-334.)

As to the second cause of action for fraud (intentional misrepresentation) and the third cause of action for fraud (concealment) the motion is denied. The court finds the FAC alleges sufficient facts to support misrepresentations and concealment regarding the severity of conditions at the property relating to the barking dogs. California law recognizes liability not only for complete nondisclosure but also for partial or misleading disclosures that materially misrepresent a condition. (See *Lingsch v. Savage* (1963) 213 Cal.App.2d 729, 735; *Pashley v. Pac. Elec. Co.* (1944) 25 Cal.2d 226, 235.) As to the fourth cause of action for negligent misrepresentation, the motion is denied. The court finds the FAC alleges sufficient facts to support this claim.

As to the sixth cause of action for violation of Civil Code section 1102 et seq., the motion is denied. The court finds the FAC alleges sufficient facts to support this claim. Civil Code section 1102 et seq. provides that sellers must disclose known material facts affecting value or desirability, including neighborhood nuisances. Whether defendants' disclosures satisfied this duty, or materially understated the severity of the condition, presents a factual dispute.

As to the ninth cause of action for rescission, the motion is granted. The FAC fails to allege facts demonstrating compliance with Civil Code section 1691(a), including prompt notice of rescission and restoration or offer to restore the benefits received under the contract. While the question of promptness is generally factual, the absence of any allegations addressing notice or tender renders the claim insufficiently pleaded. These defects, however, may be curable and leave to amend is appropriate. Therefore, the court grants the motion with leave to amend as to the ninth cause of action.

Plaintiff shall file and serve any amended complaint no later than June 26, 2026.

5. S-CV-0053338 Demas, John v. Saetes, Peter

If oral argument is requested, it will be heard in Department 42 by the **Honorable Trisha J. Hirashima**. Department 42 is located at 10820 Justice Center Drive, Roseville, California 95678.

Motion for Attorneys' Fees

Plaintiffs move for an award of attorneys' fees in the amount of \$102,492 and costs of \$8,706.42 for a total of \$111,198.42 against defendant Peter Saetes. Plaintiffs also move for post-judgment interest from November 7, 2025 pursuant to Code of Civil Procedure section 685.010.

According to the proof of service filed on November 24, 2025, plaintiffs' moving papers were served on defendant by email only. It appears plaintiffs' reply filed March 12, 2026 was likewise served on defendant by email only. Defendant Saetes is self-represented in this action and there is no indication from the court's file that he has consented to electronic service. (Code Civ. Proc., § 1010.6(c).) Accordingly, there is insufficient evidence of effective service of the motion or the reply on defendant Saetes.

The court on its own motion continues the motion for attorneys' fees to be heard on **July 14, 2026 at 8:30 a.m. in Department 32** before the **Honorable Trisha J. Hirashima**. By June 23, 2026, plaintiffs are directed to file and serve by mail a notice of continued hearing, serve defendant by mail the moving papers and reply, and file all appropriate proofs of service.

Motion for Charging Order

Plaintiffs and judgment creditors move for a charging order against the transferable interest of defendant and judgment debtor Peter Saetes pursuant to Corporations Code section 17705.03 and Code of Civil Procedure section 708.310. John Manikas, who is no longer a party to this action having been dismissed on June 17, 2025, filed an opposition.

Service is deficient as to judgment debtor Peter Saetes. According to the respective proofs of service, plaintiffs' moving papers and reply and Mr. Manikas' opposition were served on Mr. Saetes by email only. Mr. Saetes is self-represented in this action and there is no indication from the court's file that he has consented to electronic service. (Code Civ. Proc., § 1010.6, subd. (c).) Accordingly, there is insufficient evidence of effective service on judgment debtor Saetes of any of the briefing submitted for this motion for charging order.

Plaintiffs seek a charging order against Mr. Saetes' interests in two limited liability corporations: Sierra College Brace 18, LLC and Darkhorse Estates, LLC. Service of this motion appears deficient as to these entities as well, as the motion was mailed directly to the entities without any reference to any agent for service of process. No evidence is presented that either limited liability company was served by delivery to the person to whom service is authorized. Neither of these limited liability companies are or have been parties to this action nor have they otherwise appeared in this action. Service on an attorney who may represent an entity or an individual in another action would not be effective service in this action where the entities had not otherwise appeared. Plaintiffs provide no authority to support the conclusion that mailed service of this motion directly to the limited liability companies is sufficient or that anything less than personal service would be required in such a situation.

Based on the foregoing, the motion for charging order is denied without prejudice.

6. S-CV-0053679 Wilbur-Ellis Co. v. Blackbuck Orchards

Motion for Attorneys' Fees

Plaintiff moves for an award of attorneys' fees and costs incurred to enforce and collect on defendants' breach of a \$250,000 application / master note / security agreement (note) and their failure to pay an ongoing credit account issued under the account application (agreement).

By prior order, on October 21, 2025, the court entered a judgment against defendants, in the amount of \$229,805.98, for the first cause of action for breach of note, and \$10,378.49, for the second cause of action for breach of agreement. Plaintiff moves the court to grant plaintiff's motion for attorneys' fees and costs for bringing this action.

On or about April 15, 2022, defendants executed and delivered the note. Section nine of the note obligates the defendants, to pay "all expenses reasonably incurred by lender or

its agents in determining priority of, collecting, enforcing the obligations or lender's interest in the collateral, including but not limited to, reasonable attorney's fees, collection costs and legal costs with interest, when permitted by law, whether or not suit is filed, in prejudgment and post judgment enforcements..." (Declaration of Gabriel P. Herrera ("Herrera Decl."), ¶ 2.)

On or about March 2, 2022, the defendants executed the agreement. the agreement states that defendants "agree[] to pay all costs of collection, with or without suit, including actual out of pocket expenses incurred by [plaintiff] and its agents, including attorney's fees for litigation or bankruptcy and collection agency fees." (Herrera Decl., ¶ 3.) The account application contains an attorney's fees provision. (Herrera Decl., ¶ 3, Exh. 2 pg 2.) Under California Civil Code § 1717, the prevailing party in an action on a contract containing such a provision is entitled to recover reasonable attorney's fees.

Plaintiff states it incurred costs of \$986.20 employing registered process servers on October 10, 2024; October 14, 2024; October 21, 2024; and July 21, 2025. Plaintiff states it incurred \$450.91 of filing and motion costs. The total amount of costs requested by the plaintiff is \$1,437.11. (Herrera Decl., ¶ 16.) However, plaintiff has not followed requisite procedure to obtain costs, which requires the timely filing and service of a memorandum of costs within 15 days of any party's service of notice of entry of judgment. (Cal. R. Ct., rule 3.1700(a).) Here, notice of entry of judgment was served on December 9, 2025. To the extent the court may consider plaintiff's motion to constitute a memorandum of costs, it was filed more than 15 days after service of notice of entry of judgment. Based on this procedural deficiency, the court declines to award costs as requested by plaintiff.

Plaintiff requests attorneys' fees for 61.4 hours at hourly rates between \$300 and \$350 an hour in the total amount of \$18,512.80. A breakdown of time and work performed is included in the declaration submitted by plaintiff's counsel. (See Herrera Decl.) The court notes this was a straightforward collections case and plaintiff's motion for summary judgment was unopposed.

The court has carefully reviewed the billing statements provided by plaintiff. The court accepts the respective billing rates of counsel as comparable to prevailing billing rates on similar matters in the community. However the court finds that not all of the time incurred on matters in this case is reasonable. The court awards plaintiff attorneys' fees in the amount of \$14,500.

Plaintiff's motion for attorneys' fees is granted in part. Plaintiff is awarded attorneys' fees in the total amount of \$14,500. Plaintiff's request for costs is denied as untimely.

7. S-CV-0053711 City of Lincoln v. The Gathering Inn

Plaintiff's two motions to quash and motion to compel further responses are continued to **July 7, 2026 at 8:30 a.m. in Department 32** to be heard together with other motions in this matter by the **Honorable Trisha J. Hirashima**. Please note the change in department.

8. **S-CV-0054051** **Ortega, Jorge v. Chong 274 Inc.**

Motion to Dismiss for Failure to Prosecute

Defendant Chong 274, Inc. moves to dismiss for failure to prosecute the action pursuant to Code of Civil Procedure section 583.410 and 583.420. No opposition has been filed.

“The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.” (Code Civ. Proc., § 583.410, subd. (a).) However, “[t]he court may not dismiss an action pursuant to this article for delay in prosecution except after one of the following conditions has occurred:” (1) service is not effected within 2 years, (2) the action is not brought to trial within 3 years or 2 years in certain circumstances, or (3) a new trial is granted and not brought to trial within a specified time. (Code Civ. Proc., § 583.420, subd. (a).)

Defendant presents evidence, and a review of the court file confirms, plaintiff has not actively participated in this action since his counsel was relieved on counsel’s motion, effective July 28, 2025. Plaintiff did not attend the Case Management Conference scheduled for July 14, 2025. The court issued a notice of Order to Show Cause hearing regarding the failure to appear. Plaintiff did not attend the Order to Show Cause hearing on October 13, 2025. The court continued the Order to Show Cause hearing and issued another notice of Order to Show Cause. At the continued Order to Show Cause hearing on March 2, 2026, plaintiff again did not appear.

While this record appears to support a conclusion that plaintiff is not prosecuting this action with reasonable diligence, there are two problems with defendant’s argument. First, this action does not meet any of the circumstances for statutory dismissal outlined in Code of Civil Procedure section 583.420. Second and through no fault of defendant, the court’s Order to Show Cause notices were erroneously mailed to plaintiff’s former counsel but not to plaintiff. It appears defendant recognized this problem as defendant served plaintiff with the court’s notice of the Order to Show Cause hearing for March 2, 2026. However, as the notice of Order to Show Cause hearing was still improperly directed to plaintiff’s prior counsel of record rather than to plaintiff, defendant’s efforts did not cure the notice issue.

Based on the foregoing, the motion to dismiss for failure to prosecute is denied without prejudice.

Order to Show Cause Regarding Dismissal

This matter is currently scheduled for an Order to Show Cause hearing regarding dismissal on **July 16, 2026 at 9:00 a.m. in Department 3**. Plaintiff Jorge Ortega shall personally appear at the hearing to explain why the court should not dismiss his complaint. Plaintiff’s failure to appear at the Order to Show Cause hearing may result in

dismissal of the action. The clerk of the court is directed to serve plaintiff by mail a notice of Order to Show Cause and a copy of this order.

9. S-CV-0054351 Garvey-Altizer, Cheryl v. County of Placer

Motion for Leave to file Third Amended Complaint

Plaintiff requests leave to file a third amended complaint, which will repeat the allegations brought in the first amended complaint. Defendants Johnnie Hardy and Ruth Mary Hardy did not file a response. Defendants City of Lincoln and County of Placer do not oppose the motion, as long as the City and County are dismissed from the lawsuit with prejudice. The court grants plaintiff's motion for leave to file a third amended complaint. Plaintiff shall file and serve a third amended complaint on or before June 26, 2026.

10. S-CV-0055515 Henschel, Matthew v. Hengl, Kevin

The motion for disgorgement is dropped from calendar in light of the notice of withdrawal filed on May 6, 2026.

11. S-CV-0056157 Saetern, Tracy v. Donohue, Marty Wayne

Application for a Right to Attach Order ("RTAO")

Plaintiff seeks a RTAO and issuance of a writ of attachment as against defendant Marty Wayne Donohue in the amount of \$159,695.29 pursuant to Code of Civil Procedure section 483.010.

Code of Civil Procedure section 484.010 requires that prior to a writ being issued, the defendant must be served a copy of the summons and complaint as well as the notice of application and hearing and supporting documents. While the proof of service attached to the notice of application and hearing for RTAO shows service of the moving papers on defendant Marty Wayne Donohue by mail, a review of the court's file reveals insufficient evidence of the operative complaint. The proof of service filed December 24, 2025 purporting to show service of summons and complaint on defendant Donohue is deficient as it is unsupported by a declaration of diligence as required by Code of Civil Procedure section 415.20(b). The proof of service attached to the first amended complaint shows mailed service only which, in light of the deficient service of the initial complaint, is likewise deficient.

Additionally, plaintiff seeks to attach partnership assets. Plaintiff provides no explanation or briefing as to why service of this application should not be required as to the partner.

Aside from these procedural deficiencies, a RTAO may be issued for a claim for money based on contract of an amount based on contract where the total amount is fixed or readily ascertainable not less than \$500. (Code Civ. Proc., § 483.010, subd. (a).)

Ascertainable damages must be measurable by the contract or by reference to the contract itself and the basis for computing damages must be reasonable and certain. (*CIT Group/Equipment Financing, Inc. v. Super DVD, Inc.* (2004) 115 Cal.App.4th 537, 541.) “A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Proc., § 481.190.) At a noticed hearing, the court shall issue a RTOA if it finds all of the following: (1) an attachable claim, (2) probable validity of the claim, (3) proper purpose, and (4) the amount to be secured by attachment is greater than zero. (Code Civ. Proc., § 484.090, subd. (a)(1–(4).) The amount plaintiff seeks to attach appears to be based not on the disgorgement damages but primarily on the cost of repair or replacement. As the cost of repair or replacement is not based on an agreement between the parties but rather between plaintiff and a third-party, this is not an ascertainable amount.

Based on the foregoing, the application is denied.

12. S-CV-0056415 James E Williams & Son v. Moreland, Christopher G

Order to Show Cause re Preliminary Injunction

In light of plaintiff’s request to remove this hearing from calendar (filed May 29, 2026) and defendant JP Morgan Chase Bank’s similar filing (filed June 1, 2026), the court drops the order to show cause hearing from calendar. No preliminary injunction shall issue and the temporary restraining order issued by this court on May 1, 2026 is hereby dissolved.

13. S-CV-0056665 Gardner, Cheryl Fornear v. Hyundai Motor America

The moving party is advised the notice of a motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendant’s Motion to Compel Arbitration and Motion to Stay

Defendant’s request for judicial notice is granted.

Plaintiff’s objection No. 1 as to Rao Decl. ¶ 5 is sustained as to the reference to plaintiff. Plaintiff’s objection No. 2 as to Rao Decl. ¶ 6 is sustained as to references to plaintiff in lines 14-22 and overruled as to lines 23-26.

Procedural History

On December 3, 2025, plaintiff filed a complaint regarding the purchase of a 2020 Hyundai Sonata with three causes of action against defendant Hyundai Motor America, for breach of express warranty; breach of implied warranty; and violation of the Song Beverly consumer warranty act. On January 23, 2026, defendant moved to compel arbitration alleging the warranty and Hyundai’s Bluelink services included a binding arbitration provision. Plaintiff opposes this motion.

Legal Standard

Section 2 of the Federal Arbitration Act (“FAA”) makes agreements to arbitrate “valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C. § 2.) This provision reflects both a “liberal federal policy favoring arbitration” and the “fundamental principle that arbitration is a matter of contract.” (*AT&T Mobility LLC v. Concepcion*, (2011) 563 U.S. 333, 339.) California law mandates that the court must grant a petition to compel arbitration “unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement.” (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.) “Any doubts concerning the scope of arbitrable issues should be resolved in favor of arbitration, whether the problem at hand is the construction of the contract language itself or an allegation of waiver, delay, or a like defense to arbitrability.” (*Three Valleys Mun. Water Dist. v. E. F. Hutton & Co.*, (9th Cir. 1991) 925 F.2d 1136, 1139.)

Warranty

On or about December 12, 2019, plaintiff purchased the subject vehicle. Accompanying the purchase of the vehicle to plaintiff was the warranty, which included an agreement to arbitrate.

On pages 13-14 of plaintiff’s warranty is a section titled “**BINDING ARBITRATION FOR CALIFORNIA VEHICLES ONLY**”. (Warranty, Exhibit 3, Ameripour Decl., pages 15-16.) The binding arbitration provision of the Warranty provides:

PLEASE READ THIS SECTION IN ITS ENTIRETY AS IT AFFECTS YOUR RIGHTS

If you purchased or leased your Hyundai vehicle in the State of California, you and we each agree that any claim or disputes between us (including between you and any of our affiliated companies) related to or arising out of your vehicle purchase, use of your vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty, including without limitation claims related to the failure to conform a vehicle to warranty, failure to repurchase or replace your vehicle, or claims for a refund or partial refund of your vehicle's purchase price (excluding personal injury claims), shall be resolved by binding arbitration at either your or our election, even if the claim is initially filed in a court of law. If either you or we elect to resolve our dispute via arbitration (as opposed to in a court of law), such binding arbitration shall be administered by and through JAMS Mediation, Arbitration and ADR Services (JAMS) under its Streamlined Arbitration Rules & Procedures.

We will pay all JAMS fees for any arbitration except for the initial filing fee of \$250. The arbitration will be held in the city or county of your residence. To learn more about arbitration, including how to commence arbitration, you may call any JAMS office or go to www.jamsadr.org.

This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us (including our affiliated companies) relating to or arising out of your vehicle purchase, use of your vehicle, or the vehicle warranty subject to arbitration to the maximum extent permitted by law.

In any arbitration, the arbitrator shall be bound by the terms of this agreement and shall follow the applicable law. The arbitrator shall not have the power to commit manifest errors of law, and any award rendered by the arbitrator that employs a manifest error of law may be vacated or corrected by a court of competent jurisdiction for such error. The arbitrator may only resolve disputes between you and us and may not consolidate claims without the consent of all parties. The arbitrator cannot hear class or representative claims or requests for relief on behalf of others purchasing or leasing Hyundai Motor America vehicles as permitted by law. In other words, you and we may bring claims against the other only in your or our individual capacity, and not as a Plaintiff or class member in any class or representative action to the maximum extent permitted by law. If a court or arbitrator decides that any part of this agreement to arbitrate cannot be enforced as to a particular claim for relief, then that claim (and only that claim) must be brought in court and must be stayed pending arbitration of the arbitrable claims. If arbitration is elected by either party, the parties collectively agree that they waive their right to a jury trial. In no events shall class arbitration be permitted.

Notwithstanding the above, you may file a lawsuit in small claims court for any claims that otherwise require binding arbitration. This agreement evidences a transaction involving interstate commerce and shall be governed by the Federal Arbitration Act, 9 U.S.C. §§ 1-16. Judgment upon any award in arbitration may be entered in any court having jurisdiction.

IF YOU PURCHASED OR LEASED YOUR VEHICLE IN CALIFORNIA, YOUR WARRANTY IS MADE SUBJECT TO THE TERMS OF THIS BINDING ARBITRATION PROVISION. BY ACCEPTING BENEFITS UNDER THIS WARRANTY, INCLUDING HAVING ANY REPAIRS PERFORMED UNDER WARRANTY, YOU AGREE TO BE BOUND BY THESE TERMS. IF YOU DO NOT AGREE WITH THESE TERMS, PLEASE CONTACT US AT OPTOUT@HMAUSA.COM WITHIN THIRTY (30) DAYS OF YOUR PURCHASE OR LEASE TO OPT-OUT OF THIS ARBITRATION PROVISION.

(Warranty, Exhibit 3, Ameripour Decl., pg. 14.)

Bluelink Connected Services Agreement

On or about December 12, 2019, [a user] enrolled [the subject] vehicle in Hyundai's Bluelink services. (Rao Decl., ¶ 5.) Hyundai's Bluelink services refers to a connected car system that includes various functions and features. (Id. at ¶ 3.) In order to enroll in Hyundai's Bluelink services, customers must agree to the then-effective Bluelink Connected Services Agreement ("CSA"), the terms and conditions of which also include a binding arbitration provision. (Rao Decl., ¶ 4; Bluelink CSA, Exhibit 2 to Rao Decl.) Indeed, in order to enroll, [a user] had to affirmatively click the box acknowledging that they agree to the Bluelink's terms and conditions. (Rao Decl., ¶ 6.) A customer cannot successfully activate Bluelink services unless they complete the step requiring them to click the box acknowledging they agree to the Bluelink Terms and Conditions. (Id.) The arbitration provision in the CSA provides:

Hyundai and you agree to arbitrate any and all disputes and claims between us arising out of or relating to this Agreement, Connected Services, Connected Services Systems, Service Plans, your Vehicle, use of the sites, or products, services, or programs you purchase, enroll in or seek product/service support for, whether you are a Visitor or Customer, via the sites or through mobile application, except any disputes or claims which under governing law are not subject to arbitration, to the maximum extent permitted by applicable law. This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us subject to arbitration to the fullest extent permitted by law...The agreement to arbitrate otherwise includes, but is not limited to:

claims based in contract, tort, warranty, statute, fraud, misrepresentation or any other legal theory; claims that arose before this or any prior Agreement (including, but not limited to, claims relating to advertising)...

(Exhibit 2 to Rao Decl., CSA ¶ 15 (C(a).))

Analysis

Defendant has provided this warranty directly to plaintiff in connection with the purchase of the vehicle. The arbitration provision states that **"IF YOU PURCHASED OR LEASED YOUR VEHICLE IN CALIFORNIA, YOUR WARRANTY IS MADE SUBJECT TO THE TERMS OF THIS BINDING ARBITRATION PROVISION. BY ACCEPTING BENEFITS UNDER THIS WARRANTY, INCLUDING HAVING ANY REPAIRS PERFORMED UNDER WARRANTY, YOU AGREE TO BE BOUND BY THESE TERMS."** (Warranty, Exhibit 3, Ameripour Decl., pg. 14.) Additionally, the warranty states: "Hyundai Motor America (HMA) warrants your

new 2020 Hyundai vehicle pursuant to the limited warranties described in this Owner's Handbook.” (Id. at pg. 16.) Given plaintiff has leased the vehicle in California, is bringing this action pursuant to this warranty, and has alleged that repairs have been performed under the warranty, the arbitration provision applies. Therefore, defendant may compel arbitration under the warranty.

Based on the foregoing, the court grants defendant’s motion to compel arbitration. This action shall be stayed in its entirety pending conclusion of the arbitration. **The case management conference set June 22, 2026, is vacated. An order to show cause re: arbitration is set February 19, 2027, at 9:00 a.m. in Department 1.**

14. S-CV-0056703 Casebolt Flynt, Elizabeth v. Whitely, Jesse

The demurrer to the second amended complaint and motion to strike portions of plaintiff’s first amended complaint for damages are continued to June 23, 2026, at 8:30 a.m. in Department 42.

15. S-CV-0056851 Kevie, Richard v. Tiernan, William

Plaintiff is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Possession and Preliminary Injunction

Plaintiff moves for a preliminary injunction enjoining the sale of real property known as 205 Summit Street, Auburn, California 95603.

The court may grant a preliminary injunction when it appears from the complaint plaintiff is entitled to the demanded relief and plaintiff would suffer irreparable injury if the enjoined action were allowed to proceed. (Code Civ. Proc., § 526, subd. (a).) In making this determination, “the court must consider whether the party seeking the injunction is likely to prevail on the merits” and balances the relative harm to the parties. (*Mitsui Manufacturers Bank v. Texas Commerce Bank-Ford Worth* (1984) 159 Cal.App.3d 1051, 1059.) The plaintiff has the burden of showing they would be harmed without a preliminary injunction. (*Casmalia Resources, Ltd. v. County of Santa Barbara* (1987) 195 Cal.App.3d 827, 838.) The more likely it is a party will prevail on the merits, the less severe harm need be shown, particularly where the injunction maintains rather than alters the status quo. (*King v. Meese* (1987) 43 Cal.3d 1217, 1227; *Bennett v. Lew* (1984) 151 Cal.App.3d 1177.) In making its determination, the court may consider a verified complaint or affidavits. (Code Civ. Proc., § 527, subd. (a).)

A preliminary consideration for the court is proper notice to the party to be enjoined. “No preliminary injunction shall be granted without notice to the opposing party.” (Code Civ. Proc., § 527, subd. (a).) Here, a careful review of the court file reveals no evidence this motion has been served on either defendant. The motion for preliminary injunction is therefore denied.

16. S-CV-0057647 Singh, Swaiman v. Deol, Harpran Singh

Order to Show Cause re Preliminary Injunction

A review of the court's file reveals on June 4, 2026, the parties submitted a stipulation and proposed order to continue this hearing, but that filing was rejected as one of the parties had not yet paid filing fees.

To permit the parties the time they had tried to request, the court on its own motion continues the Order to Show Cause hearing regarding Preliminary Injunction to **July 17, 2026 at 8:30 a.m. in Department 1** to be heard by **Commissioner Christine S. Dehr**. Department 1 is located at 101 Maple Street, Auburn, California 95603.
